

		Henderson as a party in the operative third amended complaint. ROA 1478. Following a bench trial, as to plaintiffs' claims in the third amended complaint, the court entered judgment on March 12, 2026 in favor of defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, Matthew O'Rourke and James Pickell. ROA 3366. Henderson seeks \$709.58 in costs. ROA 3380. While the parties against whom Henderson seeks costs are not entirely clear from Henderson's costs memorandum, as plaintiffs move to strike or tax Henderson's claimed costs, the court gathers Henderson seeks reimbursement of his claimed costs from plaintiffs. Plaintiffs argue Henderson's costs memorandum should be stricken because Henderson is not a prevailing party and because he filed the costs memorandum too late. Plaintiffs also argue Henderson did not provide any evidentiary support for the claimed costs. A prevailing party is usually entitled as a matter of right to recover costs in any action or proceeding. Civ. Proc. Code § 1032(b). Growthpoint did not assert any claims against Henderson. The court accordingly discerns no basis on which Henderson could be deemed a prevailing party against Growthpoint. Henderson did not file an opposition and thus has not identified such basis. As to Clark's claims against Henderson, Clark dismissed his claims against Henderson on April 8, 2022. ROA 603. Henderson's costs memorandum was due 15 days after service of notice of entry of that dismissal. ROA 603; <i>Sanabria v. Embrey</i> (2001) 92 Cal.App.4th 422, 426 ("If notice of entry of dismissal is served, a dismissed defendant claiming costs must serve and file a memorandum of costs within 15 days after 'the date of service of written notice of entry of . . . dismissal'"); Cal. R. Ct. 3.1700(a)(1). "The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory." <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924, 929. Henderson did not file his costs memorandum until March 27, 2026; the costs memorandum was therefore untimely. Plaintiffs to give notice.
	Pickell v. Growthpoint Global, Inc. 2023-01355444	Off calendar.
4	Contreras v. Merical, LLC 2021-01214079	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for final approval of a \$3,725,000 class action and PAGA settlement. The court grants the motion as follows: